		Platinum failed to comply with California Rules of Court, Rule 3.1110(f)(4), which provides: "Electronic exhibits must meet the requirements in rule 2.256(b). Unless they are submitted by a self-represented party, electronic exhibits must include electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit." The Court expects the parties to follow this rule in future filings. On 12-7-21, the Second Amended Judgment was entered in the amount of $233,458.54 + interest accrued from 10-26-20 (ROA 596.) On 12-22-21, The Court clerk issued a writ of execution for $233,498.53 from America First Credit Union ("AFCU"). Instead of levying the funds from Platinum Properties Investor Network, Inc. (INC), AFCU levied the funds from Platinum Properties Investor Network, LLC ("LLC"). ROI returned the levied funds to AFCU who has since interpleaded them with the Court. The levied funds are now the subject of an ongoing Interpleader Action - *American First Credit Union v. ROI Property Group Management, LLC*, pending in this Court, Case No. 30-2022-01255653-CU-MC-CJC. *Code of Civil Procedure* § 724.010(b) provides as follows: "Where a money judgment is satisfied by levy, the obligation of the judgment creditor to give or file an acknowledgment of satisfaction arises only when the judgment creditor has received the full amount required to satisfy the judgment from the levying officer."

		"The court clerk shall enter satisfaction of a money judgment in the register of actions when the following occur: (a) A writ is returned satisfied for the full amount of a lump-sum judgment. (b) An acknowledgment of satisfaction of judgment is filed with the court. (c) The court orders entry of satisfaction of judgment." *Code Civ. Proc.* § 724.020. INC files this motion claiming the judgment was satisfied when the levying officer garnished $233,498.54 pursuant to a writ of execution prepared by Defendants ROI Property Group Management, LLC and ROI Property Group 2, LLC ("ROI"). INC asserts ROI "returned the funds to the garnishee" and exercised dominion, control and ownership over the funds when it "returned the funds to the bank on the condition it file an interpleader action." (Motion at p. 7:13-27.) INC argues nothing in the *Code of Civil Procedure* allows a creditor to undo its obligations by returning money it received. What ROI decided to do with the levied money after it received it makes no difference to its statutory duties. "Whether ROI gambled the money away in Las Vegas or gave the money away does not matter. What matters is the fact that ROI received funds that fully satisfied its judgment and was statutorily required to file a satisfaction of judgment." (Motion at p. 8 fn. 2.) These arguments are not credible. This is not the case of ROI using the money for some self-serving purpose or giving it away for some unknown reason. Curiously absent from INC's motion is any real mention that the levied funds were erroneously taken from the wrong bank account – Platinum Properties Investor Network, LLC ("LLC"), not INC's - nor the fact that such funds are now the subject of the

		Interpleader Action (*American First Credit Union v. ROI Property Group Management, LLC*, pending in this Court, Case No. 30-2022-01255653-CU-MC-CJC). ROI was legally compelled to return the levied funds as those funds were improperly taken from the LLC. Despite this material fact, INC urges this Court to compel ROI to file a satisfaction of judgment even though INC claims the funds paid towards that judgment do not belong to ROI and were wrongfully levied. This argument defies common sense. Money mistakenly taken from the wrong entity does not satisfy the debt obligations of the original debtor. Further, INC appears to argue that because ROI held onto the funds for a period of time and "exercised dominion, control, and ownership over the funds" this somehow amounts to a satisfaction of the judgment. (See Motion p. 7:22-8:2.) Platinum offers no legal authority to support this assertion. Although it cites to *Gray1 CPB, LLC v. SCC Acquisitions, Inc.* (2015) 233 Cal.App.4th 882, 893, as controlling in this case, *Gray I* easily distinguishable. In *Gray I*, the court held that tender of a cashier's check and creditor's acceptance of the check, constituted satisfaction of the judgment. Accordingly, the judgment creditor's motion for post judgment attorney fees was untimely because it should have been filed before the judgment was fully satisfied. But unlike the present situation, there was no dispute in *Gray I* over the source of the funds. The proper debtor paid the judgment creditor. Whereas here, the levied funds were taken from the wrong bank account and did not belong to the debtor. As previously affirmed by Judge McCormick, "Defendants do not possess the funds and judgment remain unsatisfied." (ROA 649).

		Based on the foregoing, the Court finds the judgment has not been satisfied and the motion is DENIED. ROI to give notice.
9	**Pinner Construction Company vs Pinner** **2023-01324438**	**Defendants John Pinner and Marilyn Pinner Motion for Anti-SLAPP** **Defendants John and Marilyn Pinners' (Pinners) special motion to strike the complaint of Plaintiff Pinner Construction Company (PCC) under *Code of Civil Procedure* section 425.16 is GRANTED.** Defendants' request for judicial notice of the complaint in OCSC Case No. 2022-01288013 is granted. Plaintiff's objections to the declaration of Defendant Thomas H. Edwards (Edwards) are overruled in their entirety. *Equilon Enterprises v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 67, holds: "[W]e may summarize a court's task in ruling on an anti-SLAPP motion to strike as follows. Section 425.16, subdivision (b)(1) requires the court to engage in a two-step process. First, the court decides whether the defendant has made a threshold showing that the challenged cause of action is one arising from protected activity. The moving defendant's burden is to demonstrate that the act or acts of which the plaintiff complains were taken 'in furtherance of the [defendant]'s right of petition or free speech under the United States or California Constitution in connection